BY ORDER OF THE COMMANDER
505TH COMAND AND CONTROL WING

505TH COMMAND AND CONTROL WING
INSTRUCTION 51-102

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Legal

STAFF JUDGE ADVOCATE / LEGAL ADVISOR RESPONSIBILITIES

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This instruction describes the duties and responsibilities of staff judge advocates and defines specific legal requirements unique to the 505 CCW for Commanders. The Judge Advocate General's Corps (TJAGC) provides professional legal services needed to accomplish the mission of the US Air Force and maintain the highest degree of effectiveness and readiness.

This instruction requires the collection and maintenance of information protected by the Privacy Act of 1974 authorized by title 10 U.S.C.and is subject to Freedom of Information Act (FOIA) requirements. Ensure that all records created as a result of processes prescribed in this publication are maintained in accordance with Air Force Manual (AFMAN) 33-363, *Management of Records,* and disposed of in accordance with Air Force Records Information Management System (AFRIMS) Records Disposition Schedule (RDS) located at **https://www.my.af.mil/gcss-af61a/afrims/afrims/**. Refer recommended changes and questions about this publication to the Office of Primary Responsibility (OPR) using the AF Form 847, Recommendation for Change of Publication; route AF Form 847s from the field through the appropriate functional's chain of command.

1. The Judge Advocate General's Corps.

1.1. Staff Judge Advocates**.** Unless otherwise specified by The Judge Advocate General, in units of the active duty force, Air Force Reserve and Air National Guard in Federal service, the senior judge advocate on the commander's staff will serve as the commander's staff judge advocate (SJA). A staff judge advocate must advise his or her convening authority of the statutory duty under 10 U.S.C. 806(b) to at all times communicate directly with the staff judge advocate in matters relating to administering military justice. An SJA:

1.1.1. Provides legal services required by commanders and staff agencies.

1.1.2. Advises commanders on disciplinary matters, prepares charge sheets and assists in preparing nonjudicial punishment actions; provides legal advice and assistance to Security Forces and Air Force Office of Special Investigations personnel; and provides advice to commanders and investigating officers on all investigations conducted under a commander's inherent authority or under regulation.

1.1.3. Provides legal advice and reviews actions for legal sufficiency.

1.1.4. Acts as Air Force liaison with the US Attorney and other Federal, state, and local legal departments, administrative agencies and judicial bodies; represents Air Force interests in utility rate matters; supports command and represents Air Force interests in environmental and civilian labor matters..

1.1.5. Provides briefings required by law, directive, instruction, or policy.

1.1.6. Drafts and reviews operation and exercise plans for compliance with the law of armed conflict; provides advice to commanders and staffs on international law matters, including foreign criminal jurisdiction, host country law, civil litigation, negotiations, and treaty and agreement interpretation; and provides advice and counsel to participants in mobility and contingency operations.

2. 505 CCW SJA/Legal Advisor.

2.1. 505 CCW.

2.1.1. Most traditional legal services in paragraph 1.1 will be provided by the host installation (Hurlburt Field) SJA, pursuant to a host-tenant support agreement. This includes support for military justice actions, claims services, civilian labor law, environmental law, contracting, and any other legal matters outside the purview of the 505 CCW legal advisor. Depending on the scope of the issue, the 505 CCW legal advisor will provide the appropriate support when available, time and resources permitting.

2.1.2. Within the 505 CCW, the 505 CCW SJA/Legal Advisor will:

2.1.2.1. Provide legal advice on contracting issues.

2.1.2.2. Provide legal advice on fiscal law issues.

2.1.2.3. Provide legal advice on ethics issues and manage the OGE Form 450 program.

2.1.2.4. Provide legal assistance, including notary services, to all eligible personnel.

2.1.2.5. Provide legal advice on civil law issues.

2.1.2.6. Provide any additional legal advice as required by the commander.

2.2. 505 TRG.

2.2.1. 505 CCW SJA/Legal Advisor will support the 505 TRG as follows:

2.2.1.1. Provide platform instruction and develop and maintain lessons and ancillary materials for the following courses:

Familiarization Course
Air and Space Operations Center (AOC) Initial Qualification Training
Command and Control advanced training
Joint/Combined Senior Staff Course
Any other course designated by the commander

2.2.1.2. Provide over-the-shoulder training for AOC personnel at all command-related or sponsored exercises.

2.2.1.3. Develop and maintain JA Training Task Lists.

2.2.2. SJA/Legal advisor will provide any additional legal support as required by the commander.

2.3. 505 DWG.

2.3.1. 505 CCW SJA/Legal Advisor will support the 505 DWG as follows:

2.3.1.1. Develop and implement legal-based Mission Event Synchronization Lists (MSEL) for all command-related or sponsored exercises.

2.3.1.2. Assist in the development of Rules of Engagement and other ancillary legal documents for all command-related or sponsored exercises.

2.3.1.3. Provide legal professional control force for all command-related or sponsored exercises.

2.3.2. SJA/Legal advisor will provide any additional legal support as required by the commander.

2.4. 505 OG.

2.4.1. 505 CCW SJA/Legal Advisor will support the 505 OG as follows:

2.4.1.1. Develop and maintain JA portions of all AOC-related documents, including, but not limited to, AFIs, AFOTTP, and DASH-1.

2.4.1.2. Develop and maintain JA-specific TTP for AOC systems used by AOC legal personnel.

2.4.1.3. Provide legal training and develop and maintain academics for all CAOC-N exercises and other events.

2.4.2. SJA/Legal advisor will provide any additional legal support as required by the commander.

EDWARD L. McKINZIE, Colonel, USAF
Commander

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

AFI 51-102, The Judge Advocate General's Department, 19 July 1994

Prescribed Forms:

AF Form 673, Air Force Publication/Form Action Request

Adopted Forms:

AF Form 847, Recommendation for Change of Publication

Abbreviations and Acronyms

AFOTTP—- Air Force Operational Tactics, Techniques, and Procedures

AOC—Air Operations Center

CAOC— Combined Air Operations Center

SJA— Staff Judge Advocate

TTP—Tactics, Techniques, and Procedures